(Security interest over Credit Support (IM) held with a Custodian (IM) on behalf of the Pledgor) **(ISDA Agreements Subject to New York Law)**

International Swaps and Derivatives Association, Inc.

2018 CREDIT SUPPORT ANNEX FOR INITIAL MARGIN (IM)

dated as of May 10 2023

to the Schedule to the

ISDA Master Agreement

dated as of May 10 2023

between

Atlantic Meridian Bank	and	Bluewater Union Bank
("***Party A***")		("***Party B***")

This Annex supplements, forms part of, and is subject to, the above-referenced Agreement, is part of its Schedule and is a Credit Support Document under this Agreement with respect to each party.

Accordingly, the parties agree as follows:—

Paragraph 1. Interpretation

(a) ***Definitions and Inconsistency.*** Capitalized terms not otherwise defined herein or elsewhere in this Agreement have the meanings specified pursuant to Paragraph 12, and all references in this Annex to Paragraphs are to Paragraphs of this Annex. In the event of any inconsistency between this Annex and the other provisions of this Schedule or any Other CSA, this Annex will prevail in the case of (i) matters concerning regulatory initial margin requirements relating to Covered Transactions (IM) posted by a Pledgor and (ii) specific amendments made herein to this Agreement, including the Schedule or any Other CSA, and in the event of any inconsistency between Paragraph 13 and the other provisions of this Annex, Paragraph 13 will prevail.

(b) ***Secured Party and Pledgor.*** All references in this Annex to the "***Secured Party***" will be to either party when acting in that capacity and all corresponding references to the "***Pledgor***" will be to the other party when acting in that capacity; *provided*, *however*, that, if Other Posted Support (IM) is held by a party to this Annex, all references herein to that party as the Secured Party with respect to that Other Posted Support (IM) will be to that party as the beneficiary thereof and will not subject that support or that party as the beneficiary thereof to provisions of law generally relating to security interests and secured parties.

(c) ***Scope of this Annex.*** The only Transactions which will be relevant for the purposes of determining a "***Margin Amount (IM)***" under this Annex with respect to a posting obligation of a Pledgor will be the relevant Covered Transactions (IM) specified in accordance with the provisions of Paragraph 13. Except as expressly

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provided herein, nothing in this Annex will affect the rights and obligations, if any, of either party under this Agreement or any Other CSA.[1]

(d) ***Use of Segregated Accounts.*** This Annex is intended to be used in connection with segregated accounts (each a "***Segregated Account***") maintained by third-party custodians for the custody of initial margin posted by a party acting as the Pledgor. Accordingly, the parties understand and agree that, for purposes of this Annex, (i) a Transfer of Eligible Credit Support (IM) to a Segregated Account is a Transfer of such Eligible Credit Support (IM) to the Secured Party and (ii) Eligible Credit Support (IM) Transferred to a Segregated Account is Posted Credit Support (IM). Any reference in this Annex to a "Segregated Account" refers to a Segregated Account in respect of the Pledgor.

(e) ***Amendment Effective Date (IM).*** Unless otherwise specified in Paragraph 13, any specific amendments made herein to this Agreement, including the Schedule or any Other CSA, will become effective as of the Amendment Effective Date (IM).

Paragraph 2. Security Interest

Each party, as the Pledgor, hereby pledges to the other party, as the Secured Party, as security for its Obligations, and grants to the Secured Party a first priority continuing security interest in, lien on and right of Set-off against each Segregated Account and all Posted Collateral (IM) Transferred to the Secured Party hereunder. Upon the Transfer of Posted Collateral (IM) to the Pledgor on the instruction of the Secured Party or as otherwise permitted under this Annex or agreed by the parties, the security interest and lien granted hereunder on that Posted Collateral (IM) will be released immediately and, to the extent possible, without any further action by either party.

Paragraph 3. Credit Support Obligations

(a) ***Delivery Amount (IM).*** Subject to Paragraphs 4 and 5, upon a demand made by the Secured Party on or promptly following a Calculation Date (IM), if the Delivery Amount (IM) applicable to the Pledgor for that Calculation Date (IM) equals or exceeds the Pledgor's Minimum Transfer Amount (IM), then the Pledgor will Transfer to the Secured Party Eligible Credit Support (IM) having a Value as of the date of Transfer at least equal to the applicable Delivery Amount (IM) (rounded pursuant to Paragraph 13). Unless otherwise specified in Paragraph 13, the "***Delivery Amount (IM)***" applicable to the Pledgor for any Calculation Date (IM) will equal the amount by which:

(i) the Credit Support Amount (IM) applicable to the Pledgor

exceeds

(ii) the Value as of that Calculation Date (IM) of all Posted Credit Support (IM) held by the Secured Party (as adjusted to include any prior Delivery Amount (IM) and to exclude any prior Return Amount (IM), the transfer of which, in either case, has not yet been completed and for which the relevant Regular Settlement Day falls on or prior to such Calculation Date (IM)).

(b) ***Return Amount (IM).*** Subject to Paragraphs 4 and 5, upon a demand made by the Pledgor on or promptly following a Calculation Date (IM), if the Return Amount (IM) applicable to the Secured Party for that Calculation Date (IM) equals or exceeds the Secured Party's Minimum Transfer Amount (IM), then the Secured Party will Transfer to the Pledgor Posted Credit Support (IM) specified by the Pledgor in that demand having a Value as of the date of Transfer as close as practicable to (but not more than) the applicable Return Amount (IM) (rounded pursuant to Paragraph 13). Unless otherwise specified in Paragraph 13, the "***Return Amount (IM)***" applicable to the Secured Party for any Calculation Date (IM) will equal the amount by which:

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[1] As this Annex may amend another agreement, parties should ensure that any relevant formalities required to amend such agreement are complied with.

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(i) the Value as of that Calculation Date (IM) of all Posted Credit Support (IM) held by the Secured Party (as adjusted to include any prior Delivery Amount (IM) and to exclude any prior Return Amount (IM), the transfer of which, in either case, has not yet been completed and for which the relevant Regular Settlement Day falls on or prior to such Calculation Date (IM))

exceeds

(ii) the Credit Support Amount (IM) applicable to the Pledgor.

(c) ***"Margin Amount (IM)"; "Margin Amount (IA)"; Margin Approach.***

(i) "***Margin Amount (IM)***" means, for any Calculation Date (IM) and a posting obligation of a Pledgor under a Regime, the Base Currency Equivalent of an amount equal to the sum of the initial margin amounts in respect of the Covered Transactions (IM) determined using the Method specified as applicable to such Regime in Paragraph 13.

(ii) "***Margin Amount (IA)***" means, for any Calculation Date (IM) and a posting obligation of a Pledgor, the Base Currency Equivalent of an amount equal to the sum of the Independent Amounts (as defined in any Other CSA) applicable to the Pledgor and any other amounts applicable to the Pledgor (other than any amounts in respect of Margin Amount (IM) or Exposure), however described, intended by the parties to operate as an Independent Amount, if any, after taking into account any relevant Threshold applicable to the Pledgor and any other relevant amounts applicable to the Pledgor, however described, intended by the parties to operate as a Threshold but prior to giving effect to any other applicable deduction, discharge or netting of such amounts, under or in relation to this Agreement, as determined and reported by the party responsible for calculating such amounts. For the avoidance of doubt, in order to determine the amounts "applicable to the Pledgor" for the purposes hereof, the parties will take into account the effect of any conditions precedent applicable to such amounts.

(iii) ***Margin Approach.***[2] The parties have agreed, in Paragraph 13, to implement one of the following approaches (each a "***Margin Approach***") with respect to the relationship between "***Margin Amount (IM)***" and "***Margin Amount (IA)***".

(A) If the "***Distinct Margin Flow (IM) Approach***" is specified as applicable in Paragraph 13, the following provisions will apply:

(1) "***Credit Support Amount (IM)***" means, with respect to a party as the Pledgor, for any Calculation Date (IM), (i) the Margin Amount (IM) applicable to the Pledgor, if any, minus (ii) the Pledgor's Threshold (IM); *provided*, *however*, that the Credit Support Amount (IM) will be deemed to be zero whenever the calculation of the Credit Support Amount (IM) yields a number less than zero.

(2) ***No Amendment to Obligations in respect of Margin Amount (IA).*** The posting obligation of a Pledgor in respect of any amount that constitutes a Margin Amount (IA) under any Other CSA shall not be affected or amended in any way by the provisions of this Annex.

(B) If the "***Allocated Margin Flow (IM/IA) Approach***" is specified as applicable in Paragraph 13, the following provisions will apply:

(1) "***Credit Support Amount (IM)***" means, with respect to a party as the Pledgor, for any Calculation Date (IM), (i) the Margin Amount (IM) applicable to the Pledgor, if any, minus (ii) the

[2] If the parties do not currently exchange Margin Amount (IA), each of the three Margin Approaches will yield the same Credit Support Amount (IM). In such a case, the parties should agree on the Margin Approach they would want to apply in the event they exchange Margin Amount (IA) in the future.

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Pledgor's Threshold (IM); *provided*, *however*, that the Credit Support Amount (IM) will be deemed to be zero whenever the calculation of the Credit Support Amount (IM) yields a number less than zero.

(2) ***Amendment to Obligations in respect of Margin Amount (IA).*** The posting obligation of a Pledgor in respect of any amount that constitutes a Margin Amount (IA) under any Other CSA shall be reduced on an aggregate basis by the amount of the Pledgor's Credit Support Amount (IM); *provided, however*, that if, after such reduction, any such Margin Amount (IA) would be a negative amount, such Margin Amount (IA) will be deemed to be zero.[3]

(C) If the "***Greater of Margin Flow (IM/IA) Approach***" is specified as applicable in Paragraph 13, the following provisions will apply:

(1) "***Credit Support Amount (IM)***" means, with respect to a party as the Pledgor, for any Calculation Date (IM), the greater of (i)(A) the Margin Amount (IM) applicable to the Pledgor, if any, minus (B) the Pledgor's Threshold (IM) and (ii) the Margin Amount (IA); *provided*, *however*, that the Credit Support Amount (IM) will be deemed to be zero whenever the calculation of the Credit Support Amount (IM) yields a number less than zero.

(2) ***Amendment to Obligations in respect of Margin Amount (IA).*** The posting obligation of a Pledgor in respect of any amount that constitutes a Margin Amount (IA) under any Other CSA, other than such obligations of a Pledgor under this Annex, shall be reduced to zero.[4]

Paragraph 4. Conditions Precedent, Transfer Timing, Calculations and Substitutions

(a) ***Conditions Precedent.*** Unless otherwise specified in Paragraph 13, each Transfer obligation of the Pledgor under Paragraphs 3 and 5 and of the Secured Party under Paragraphs 3, 4(d)(ii) and 5 and the provisions of Paragraph 13 relating to the return of Posted Credit Support (IM) with a Value of zero is subject to the conditions precedent that:

(i) no Event of Default, Potential Event of Default or Specified Condition has occurred and is continuing with respect to the other party; and

(ii) no Early Termination Date has occurred or been designated for which any unsatisfied payment obligations (whether present, actual, future or contingent) exist which is in respect of all Covered Transactions (IM).

(b) ***Transfer Timing.*** Subject to Paragraphs 4(a) and 5, and unless otherwise specified in Paragraph 13, if a demand for the Transfer of Eligible Credit Support (IM) or Posted Credit Support (IM) is made by the Notification Time, then the relevant Transfer will be made not later than the close of business on the Regular Settlement Day; if a demand is made after the Notification Time, then the relevant Transfer will be made not later than the close of business on the next Local Business Day following the Regular Settlement Day.

(c) ***Calculations.*** All calculations of Value and Credit Support Amount (IM) for purposes of Paragraph 3 will be made by the Calculation Agent (IM) as of the Calculation Time (IM). In the case of any calculation of Value, the Calculation Agent (IM) may use Values most recently reasonably available for close of business in the relevant market for the relevant Eligible Credit Support (IM) as of the Calculation Time (IM). In the case of any calculation of Credit Support Amount (IM), the Calculation Agent (IM) may use relevant information or data (including, but not limited to, inputs for any applicable model specified in Paragraph 13 to determine Margin Amount (IM) for certain

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[3] Parties should (i) ensure that any relevant formalities required to amend any Other CSA are complied with and (ii) consider the impact of these amendments on any Other CSA, including, but not limited to, in respect of any security interest granted thereunder.

[4] See footnote 3.

Covered Transactions (IM)) most recently reasonably available for close of business in the relevant market(s) as of the Calculation Time (IM). The Calculation Agent (IM) will notify each party (or the other party, if the Calculation Agent (IM) is a party) of its calculations not later than the Notification Time on the Local Business Day following the applicable Calculation Date (IM).

(d) ***Substitutions.***

(i) Unless otherwise specified in Paragraph 13, upon notice to the Secured Party specifying the items of Posted Credit Support (IM) to be exchanged, the Pledgor may, on any Local Business Day, Transfer to the Secured Party substitute Eligible Credit Support (IM) (the "***Substitute Credit Support (IM)***").

(ii) Subject to Paragraph 4(a) above, the Secured Party will Transfer to the Pledgor the items of Posted Credit Support (IM) specified by the Pledgor in its notice not later than the Local Business Day following the date on which the Secured Party receives the Substitute Credit Support (IM), unless otherwise specified in Paragraph 13 (the "***Substitution Date***"); *provided* that the Secured Party will only be obligated to Transfer Posted Credit Support (IM) with a Value as of the date of Transfer as close as practicable to, but not more than, the Value of the Substitute Credit Support (IM) as of that date, as calculated by the Calculation Agent (IM).

Paragraph 5. Dispute Resolution

If a party (a "***Disputing Party***") disputes (I) the Calculation Agent (IM)'s calculation of a Delivery Amount (IM) or a Return Amount (IM) or (II) the Value of any Transfer of Eligible Credit Support (IM) or Posted Credit Support (IM), then:

(i) the Disputing Party will notify the other party and the Calculation Agent (IM) (if the Calculation Agent (IM) is not the other party) not later than the close of business on (x) the date that the Transfer is due in respect of such Delivery Amount (IM) or Return Amount (IM) in the case of (I) above, or (y) the Local Business Day following the date of Transfer in the case of (II) above;

(ii) subject to Paragraph 4(a), the appropriate party will Transfer the undisputed amount to the other party not later than the close of business on (x) the date that the Transfer is due in respect of such Delivery Amount (IM) or Return Amount (IM) in the case of (I) above, or (y) the Local Business Day following the date of Transfer in the case of (II) above;

(iii) the parties will consult with each other in an attempt to resolve the dispute; and

(iv) if they fail to resolve the dispute by the Resolution Time, then:

(A) in the case of a dispute involving a Delivery Amount (IM) or Return Amount (IM), the Calculation Agent (IM) will recalculate the Credit Support Amount (IM) and Value as of the Recalculation Date by using the procedures specified in Paragraph 13 for calculating the Credit Support Amount (IM), and for calculating the Value, if disputed, of Posted Credit Support (IM); and

(B) in the case of a dispute involving the Value of any Transfer of Eligible Credit Support (IM) or Posted Credit Support (IM), the Calculation Agent (IM) will recalculate the Value as of the date of Transfer pursuant to Paragraph 13.

Following a recalculation pursuant to this Paragraph 5, the Calculation Agent (IM) will notify each party (or the other party, if the Calculation Agent (IM) is a party) not later than the Notification Time on the Local Business Day following the Resolution Time. The appropriate party will, upon demand following that notice by the Calculation Agent (IM) or a resolution pursuant to Paragraph 5(iii) above and subject to Paragraphs 4(a) and 4(b), make the appropriate Transfer.

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Paragraph 6. Custody Arrangements and the Control Agreement

The Custodian (IM) appointed with respect to each party as the Pledgor is specified in Paragraph 13. Each party as the Pledgor and the other party as the Secured Party and the relevant Custodian (IM) have entered, or will, on or before the first day amounts are required to be transferred hereunder, enter into the Control Agreement providing applicable terms for each party to provide instructions to the Custodian (IM). Prior to the enforcement of its rights under Paragraph 8, the Secured Party will not be entitled to hold any Posted Collateral (IM), except as provided in the Control Agreement or as otherwise agreed between the parties.

(a) ***Custodian (IM) Risk.*** Unless otherwise specified in Paragraph 13, with respect to a party as the Secured Party and the other party as the Pledgor:

(i) the Pledgor will be liable for the acts or omissions of the Custodian (IM) to the same extent that the Pledgor would be liable hereunder for its own acts or omissions and any such act or omission of the Custodian (IM) will be deemed to be the act or omission of the Pledgor for purposes of Paragraph 7 unless Custodian Event is specified as applicable in Paragraph 13, in which case, the consequences of any act or omission of the Custodian (IM) that constitutes a Custodian Event will be as set out in the "Custodian Event" provisions in Paragraph 13;

(ii) the Secured Party will not be liable for the acts or omissions of the Custodian (IM); and

(iii) any obligation of the Secured Party to Transfer, or cause the Custodian (IM) to Transfer, Posted Collateral (IM) held by the Custodian (IM) to the Pledgor will be deemed satisfied by the Secured Party's sending appropriate instructions to the Custodian (IM) in accordance with the terms of the Control Agreement to effect such Transfer. For the avoidance of doubt, the Secured Party will bear no liability for the failure of the Custodian (IM) to comply with such instructions and no such failure will constitute an Event of Default with respect to the Secured Party.

(b) ***Use of Posted Collateral (IM).*** Without limiting the rights of the Secured Party under Paragraph 8, the Secured Party will have no right to:

(i) sell, pledge, rehypothecate, assign, invest, use, commingle or otherwise dispose of, or otherwise use in its business any Posted Collateral (IM); or

(ii) register any Posted Collateral (IM) in the name of the Secured Party, its custodian or a nominee for either.

(c) ***No Offset.*** Except as otherwise provided in Paragraph 8, no delivery or return of any margin under any Other CSA will be offset against (or netted with) any Delivery Amount (IM) or Return Amount (IM).

(d) ***Distributions and Interest Amount.*** Except as otherwise provided in this Annex, the Secured Party will have no obligation hereunder to pay or to Transfer to the Pledgor any amount of interest in respect of any Posted Credit Support (IM) in the form of Cash or any Distributions in respect of Posted Credit Support (IM).

Paragraph 7. Events of Default

For purposes of Section 5(a)(iii)(1) of this Agreement, an Event of Default will exist with respect to a party if:

(i) that party fails to make, when due, any Transfer of Eligible Collateral (IM) or Posted Collateral (IM), as applicable, required to be made by it and that failure continues for two Local Business Days after notice of that failure is given to that party;

(ii) that party fails to comply with Paragraph 6(b) and that failure continues for five Local Business Days after notice of that failure is given to that party; or

(iii) that party fails to comply with or perform any agreement or obligation other than those specified in Paragraphs 7(i) and 7(ii) and that failure continues for 30 days after notice of that failure is given to that party,

provided that, if Custodian Event is specified as applicable in Paragraph 13, any event or circumstance that constitutes or gives rise to a Custodian Event will not constitute or give rise to such Event of Default.

Paragraph 8. Certain Rights and Remedies

(a) ***Secured Party's Rights and Remedies.*** If at any time a Secured Party Rights Event has occurred and is continuing, then, unless the Pledgor has paid in full all of its Obligations, the Secured Party may exercise one or more of the following rights and remedies:

(i) all rights and remedies available to a secured party under applicable law with respect to Posted Collateral (IM);

(ii) any other rights and remedies available to the Secured Party under the terms of Other Posted Support (IM), if any;

(iii) the right to Set-off (A) any amounts payable by the Pledgor with respect to any Obligations and (B) any Cash amounts and the Cash equivalent of any non-Cash items posted to the Pledgor by the Secured Party as margin under any Other CSA (other than any Other CSA Excluded Credit Support) the return of which is due to the Secured Party against any Posted Collateral (IM) or the Cash equivalent of any Posted Collateral (IM) (or any obligation of the Secured Party to Transfer that Posted Collateral (IM)); and

(iv) the right to liquidate any Posted Collateral (IM) through one or more public or private sales or other dispositions with such notice, if any, as may be required under applicable law, free from any claim or right of any nature whatsoever of the Pledgor, including any equity or right of redemption by the Pledgor (with the Secured Party having the right to purchase any or all of the Posted Collateral (IM) to be sold) and to apply the proceeds (or the Cash equivalent thereof) from the liquidation of the Posted Collateral (IM) to: (A) any amounts payable by the Pledgor with respect to any Obligations and (B) any Cash amounts and the Cash equivalent of any non-Cash items posted to the Pledgor by the Secured Party as margin under any Other CSA (other than any Other CSA Excluded Credit Support) the return of which is due to the Secured Party in such order as the Secured Party may elect.

Each party acknowledges and agrees that Posted Collateral (IM) in the form of securities may decline speedily in value and is of a type customarily sold on a recognized market, and, accordingly, the Pledgor is not entitled to prior notice of any sale of that Posted Collateral (IM) by the Secured Party, except any notice that is required under applicable law and cannot be waived.

(b) ***Pledgor's Rights and Remedies.*** If at any time a Pledgor Rights Event has occurred and is continuing, then:

(i) the Pledgor may exercise all rights and remedies available to a pledgor under applicable law with respect to Posted Collateral (IM);

(ii) the Pledgor may exercise any other rights and remedies available to the Pledgor under the terms of Other Posted Support (IM), if any;

(iii) the Secured Party will be obligated immediately to Transfer all Posted Collateral (IM) to the Pledgor; and

(iv) to the extent that Posted Collateral (IM) is not so Transferred pursuant to Paragraph 8(b)(iii) above, the Pledgor may:

(A) Set-off any amounts payable by the Pledgor with respect to any Obligations against any Posted Collateral (IM) or the Cash equivalent of any Posted Collateral (IM) (or any obligation of the Secured Party to Transfer that Posted Collateral (IM)); and

(B) to the extent that the Pledgor does not Set-off under Paragraph 8(b)(iv)(A) above, withhold payment of any remaining amounts payable by the Pledgor with respect to any Obligations, up to the Value of any remaining Posted Collateral (IM), until that Posted Collateral (IM) is Transferred to the Pledgor.

(c) ***Deficiencies and Excess Proceeds.***

(i) A party will remain liable for all Obligations of such party remaining unsatisfied after the exercise of rights and remedies by the other party (the "***Exercising Party***") under Paragraph 8(a) or (b).

(ii) Following the exercise of such rights and remedies, the Exercising Party will, as the Secured Party, Transfer to the other party any proceeds and Posted Credit Support (IM) remaining after satisfaction in full of all payment and delivery Obligations of such other party, including (if applicable) the Transfer and release to the Exercising Party by such other party, in its capacity as the Secured Party, of all Posted Credit Support (IM) hereunder and the return of any other amounts and items posted by the Exercising Party to such other party as credit support under any Other CSA.

(d) ***Final Returns.*** Subject to Paragraph 8(c), upon satisfaction in full of all Obligations of the Pledgor (except for any potential liability under Section 2(d) of this Agreement or any obligation to transfer any interest payment under any Other CSA), the Secured Party will Transfer to the Pledgor all Posted Credit Support (IM), if any.

Paragraph 9. Representations

Each party represents to the other party (which representations will be deemed to be repeated as of each date on which it, as the Pledgor, Transfers Eligible Collateral (IM)) that:

(i) it has the power to grant a security interest in and lien on any Eligible Collateral (IM) it Transfers as the Pledgor and has taken all necessary actions to authorize the granting of that security interest and lien;

(ii) it is the sole owner of or otherwise has the right to Transfer all Eligible Collateral (IM) it Transfers to the Secured Party hereunder, free and clear of any security interest, lien, encumbrance or other restrictions other than the security interest and lien granted under Paragraph 2 or any security interest referred to in, or in connection with, the Control Agreement;

(iii) upon the Transfer of any Eligible Collateral (IM) to the Secured Party under the terms of this Annex, the Secured Party will have a valid and perfected first priority security interest therein (assuming that any central clearing corporation or any third-party financial intermediary or other entity not within the control of the Pledgor involved in the Transfer of that Eligible Collateral (IM) gives the notices and takes the action required of it under applicable law for perfection of that interest), except to the extent subordinate to any security interest referred to in, or in connection with, the Control Agreement; and

(iv) the performance by it of its obligations under this Annex will not result in the creation of any security interest, lien or other encumbrance on any Posted Collateral (IM) other than the security interest and lien granted under Paragraph 2 or any security interest referred to in, or in connection with, the Control Agreement.

Paragraph 10. Expenses

(a) ***General.*** Except as otherwise provided in Paragraphs 10(b) and (c) below, each party will pay its own costs and expenses in connection with performing its obligations under this Annex and neither party will be liable for any costs and expenses incurred by the other party in connection herewith.

(b) ***Posted Credit Support (IM).*** The Pledgor will promptly pay when due all taxes, assessments or charges of any nature that are imposed with respect to Posted Credit Support (IM) held by the Custodian (IM) upon becoming aware of the same.

(c) ***Liquidation/Application of Posted Credit Support (IM).*** All reasonable costs and expenses incurred by or on behalf of the Secured Party or the Pledgor in connection with the liquidation and/or application of any Posted Credit Support (IM) under Paragraph 8 or the Control Agreement, as applicable, will be payable, on demand and pursuant to the Expenses Section of this Agreement, by the Defaulting Party or, if there is no Defaulting Party, equally by the parties.

Paragraph 11. Miscellaneous

(a) ***Default Interest.*** A Secured Party that fails to make, when due, any Transfer of Posted Collateral (IM) will be obligated to pay the Pledgor (to the extent permitted under applicable law) an amount equal to interest at the Default Rate multiplied by the Value of the items of property that were required to be Transferred, from (and including) the date that Posted Collateral (IM) was required to be Transferred to (but excluding) the date of Transfer of that Posted Collateral (IM). This interest will be calculated on the basis of daily compounding and the actual number of days elapsed.

(b) ***Further Assurances.*** Promptly following a demand made by a party, the other party will execute, deliver, file and record any financing statement, specific assignment or other document, and take any other action that may be necessary or desirable and reasonably requested by that party to create, preserve, perfect or validate any security interest or lien granted under Paragraph 2, to enable that party to exercise or enforce its rights under this Annex with respect to Posted Credit Support (IM) or to effect or document a release of a security interest on Posted Collateral (IM).

(c) ***Further Protection.*** The Pledgor will promptly give notice to the Secured Party of, and defend against, any suit, action, proceeding or lien that involves Posted Credit Support (IM) Transferred by the Pledgor or that could adversely affect the security interest and lien granted by it under Paragraph 2.

(d) ***Good Faith and Commercially Reasonable Manner.*** Performance of all obligations under this Annex, including, but not limited to, all calculations, valuations and determinations made by either party, will be made in good faith and in a commercially reasonable manner.

(e) ***Demands and Notices.*** All demands and notices made by a party under this Annex will be made as specified in the Notices Section of this Agreement, except as otherwise provided in Paragraph 13.

(f) ***Specifications of Certain Matters.*** Anything referred to in this Annex as being specified in Paragraph 13 also may be specified in one or more Confirmations or other documents and this Annex will be construed accordingly.

(g) ***Interpretation.*** Unless otherwise specified in Paragraph 13, references in this Annex to a law, statute or statutory provision include (i) such law, statute or statutory provision as from time to time amended, modified, re- enacted or consolidated whether before or after the date of this Annex; and (ii) any subordinate legislation from time to time made, amended, modified, re-enacted or consolidated, whether before or after the date of this Annex under any such law, statute or statutory provision. Notwithstanding the foregoing, for the purposes of determining (i) if a Transaction is a Covered Transaction (IM) and (ii) what version of any standardized initial margin schedule applies to a particular Transaction (if the parties have otherwise agreed to apply such standardized initial margin schedule to such Transaction), the relevant law, statute, statutory provision or subordinate legislation will be such law, statute, statutory provision or subordinate legislation as in effect on the date the relevant Transaction was entered into.

Paragraph 12. Definitions

As used in this Annex:—

"***Allocated Margin Flow (IM/IA) Approach***" has the meaning specified in Paragraph 3(c)(iii)(B).

"***Amendment Effective Date (IM)***" means the first date on which a Covered Transaction (IM) is entered into by the parties hereto.

"***Base Currency***" means the currency specified as such in Paragraph 13.

"***Base Currency Equivalent***" means, with respect to an amount on a Calculation Date (IM), in the case of an amount denominated in the Base Currency, such Base Currency amount and, in the case of an amount denominated in a currency other than the Base Currency (the "***Other Currency***"), the amount of Base Currency required to purchase such amount of the Other Currency at the spot exchange rate on such Calculation Date (IM) as determined by the Calculation Agent (IM).

"***Calculation Agent (IM)***" has the meaning specified in Paragraph 13.

"***Calculation Date (IM)***" means, unless otherwise specified in Paragraph 13, each day from, and including, the date of this Annex, that is a day on which commercial banks are open for general business in at least one Calculation Date Location (IM) for Party A and at least one Calculation Date Location (IM) for Party B.

"***Calculation Date Location (IM)***" has the meaning specified in Paragraph 13.

"***Calculation Time (IM)***" has the meaning specified in Paragraph 13.

"***Cash***" means, respectively, the Base Currency and each other Eligible Currency.

"***Control Agreement***" has the meaning specified in Paragraph 13.

"***Covered Transactions (IM)***" has the meaning specified in Paragraph 13.

"***Credit Support Amount (IM)***" has the meaning specified in the relevant Margin Approach in Paragraph 3(c).

"***Custodian Event***" has the meaning specified in Paragraph 13.

"***Custodian (IM)***" means, with respect to a party as the Secured Party and the other party as the Pledgor, the meaning specified in Paragraph 13. For the avoidance of doubt, any reference in this Annex to the "Custodian (IM)" refers to the Custodian (IM) in respect of the Pledgor.

"***Delivery Amount (IM)***" has the meaning specified in Paragraph 3(a).

"***Disputing Party***" has the meaning specified in Paragraph 5.

"***Distinct Margin Flow (IM) Approach***" has the meaning specified in Paragraph 3(c)(iii)(A).

"***Distributions***" means, with respect to Posted Credit Support (IM) other than Cash, all principal, interest and other payments and distributions of cash or other property with respect thereto. Distributions will not include any item of property acquired by the Secured Party upon any disposition or liquidation of Posted Collateral (IM) or, with respect to any Posted Collateral (IM) in the form of Cash, any distributions on that collateral, unless otherwise specified herein.

"***Eligible Collateral (IM)***" has the meaning specified in Paragraph 13.

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"***Eligible Credit Support (IM)***" means Eligible Collateral (IM) and Other Eligible Support (IM).

"***Eligible Currency***" means each currency specified as such in Paragraph 13, if such currency is freely available.

"***Exercising Party***" has the meaning specified in Paragraph 8(c).

"***FX Haircut Percentage***" means, for any item of Eligible Collateral (IM), the percentage specified in accordance with Paragraph 13.

"***Greater of Margin Flow (IM/IA) Approach***" has the meaning specified in Paragraph 3(c)(iii)(C).

"***Local Business Day***" means, unless otherwise specified in Paragraph 13:

(i) in relation to a transfer of cash or other property (other than securities) under this Annex, a day on which commercial banks are open for business (including dealings in foreign exchange and foreign currency deposits) in the place where the relevant Segregated Account is located and, if different, in the principal financial center, if any, of the currency of such payment or, as applicable, place of delivery;

(ii) in relation to a transfer of securities under this Annex, (a) a day on which the clearance system agreed between the parties for delivery of the securities is open for the acceptance and execution of settlement instructions or, if delivery of the securities is contemplated by other means, a day on which commercial banks are open for business (including dealings in foreign exchange and foreign currency deposits) in the place(s) agreed between the parties for this purpose and (b) a day on which commercial banks are open for business (including dealings in foreign exchange and foreign currency deposits) in the place where the relevant Segregated Account is located;

(iii) in relation to a valuation under this Annex, a day on which commercial banks are open for business (including dealings in foreign exchange and foreign currency deposits) in the place(s) agreed between the parties for this purpose; and

(iv) in relation to any notice or other communication or other reference to Local Business Day under this Annex, a day on which commercial banks are open for business (including dealings in foreign exchange and foreign currency deposits) in the place specified in the address for notice most recently provided by the recipient.

"***Margin Amount (IA)***" has the meaning specified in Paragraph 3(c)(ii).

"***Margin Amount (IM)***" has the meaning specified in Paragraph 3(c)(i).

"***Margin Approach***" has the meaning specified in Paragraph 3(c)(iii).

"***Method***" has the meaning specified in Paragraph 13.

"***Minimum Transfer Amount (IM)***" means, with respect to a party, the Base Currency Equivalent of the amount specified as such for that party in Paragraph 13 and, if no amount is specified, zero.

"***Notification Time***" has the meaning specified in Paragraph 13.

"***Obligations***" means, with respect to a party, all present, future, actual and contingent obligations of that party under this Agreement and any additional obligations specified for that party in Paragraph 13.

"***Other CSA***" means any other credit support annex, credit support deed, collateral transfer agreement (and related security agreement) or other collateral related supplement or provision that (i) is a Credit Support Document or (ii) forms part of this Agreement. For the avoidance of doubt, the Control Agreement is not an Other CSA.

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"***Other CSA Excluded Credit Support***" means, with respect to an Other CSA, any amounts and items posted as margin under such Other CSA, which, pursuant to the terms of such Other CSA, Party A and Party B have agreed must be segregated in an account maintained by a third-party custodian or for which offsets are prohibited.

"***Other Eligible Support (IM)***" means, with respect to a party, the items, if any, specified as such for that party in Paragraph 13.

"***Other Posted Support (IM)***" means all Other Eligible Support (IM) Transferred to the Secured Party that remains in effect for the benefit of that Secured Party.

"***Pledgor***" means either party, when that party (i) receives a demand for or is required to Transfer Eligible Credit Support (IM) under Paragraph 3(a) or (ii) has Transferred Eligible Credit Support (IM) under Paragraph 3(a).

"***Pledgor Rights Event***" has the meaning specified in Paragraph 13.

"***Posted Collateral (IM)***" means all Eligible Collateral (IM), other property, Distributions, and all proceeds thereof that have been Transferred to or received by the Secured Party under this Annex or otherwise credited to the relevant Segregated Account by the Custodian (IM) and not Transferred to the Pledgor pursuant to Paragraph 3(b), 4(d)(ii), or the provisions of Paragraph 13 relating to the return of Posted Credit Support (IM) with a Value of zero, released by the Secured Party under Paragraph 8, or otherwise debited from the relevant Segregated Account by the Custodian (IM).

"***Posted Credit Support (IM)***" means Posted Collateral (IM) and Other Posted Support (IM).

"***Recalculation Date***" has the meaning specified in Paragraph 13.

"***Regime***" has the meaning specified in Paragraph 13 and with the definitions of the individual Regimes also being set out in Paragraph 13.

"***Regular Settlement Day***" means, unless otherwise specified in Paragraph 13, the same Local Business Day on which a demand for the Transfer of Eligible Credit Support (IM) or Posted Credit Support (IM) is made.

"***Resolution Time***" has the meaning specified in Paragraph 13.

"***Return Amount (IM)***" has the meaning specified in Paragraph 3(b).

"***Secured Party***" means either party, when that party (i) makes a demand for or is entitled to receive Eligible Credit Support (IM) under Paragraph 3(a) or (ii) holds or is deemed to hold Posted Credit Support (IM).

"***Secured Party Rights Event***" has the meaning specified in Paragraph 13.

"***Segregated Account***" has the meaning specified in Paragraph 1(d).

"***Set-off***" means set-off, offset, combination of accounts, right of retention or withholding or similar right or requirement (whether arising under this Agreement, another contract, applicable law or otherwise) and, when used as a verb, the exercise of any such right or the imposition of any such requirement, and, for purposes of the foregoing, includes the right to convert a currency in which one amount is denominated into the currency in which the other is denominated at the rate of exchange at which the party exercising such right of Set-off would be able, in good faith and using commercially reasonable procedures, to purchase the relevant amount of such currency.

"***Specified Condition***" means, with respect to a party, any event specified as such for that party in Paragraph 13.

"***Substitute Credit Support (IM)***" has the meaning specified in Paragraph 4(d)(i).

"***Substitution Date***" has the meaning specified in Paragraph 4(d)(ii).

"***Threshold (IM)***" means, with respect to a party, the Base Currency Equivalent of the amount specified as such for that party in Paragraph 13 and, if no amount is specified, zero.

"***Transfer***" means, with respect to any Eligible Credit Support (IM) or Posted Credit Support (IM), and in accordance with the instructions of the Secured Party, Pledgor or Custodian (IM), as applicable:

(i) in the case of Eligible Credit Support (IM) in the form of Cash or securities, (A) book entry, wire or other transfer of such Eligible Credit Support (IM) to the Custodian (IM) (accompanied in the case of certificated securities that cannot be paid or delivered by book-entry by any duly executed instruments of transfer, assignments in blank, transfer tax stamps or any other documents necessary to permit the Custodian (IM) to make legally valid transfers of such certificated securities upon instruction of the Secured Party) and (B) the Custodian (IM) crediting such assets to the relevant Segregated Account;

(ii) in the case of Posted Credit Support (IM) in the form of Cash or securities, book entry, wire or other transfer of such Posted Credit Support (IM) by the Custodian (IM) (or in the case of excess proceeds, the Secured Party) to the relevant cash, securities or other account of the Pledgor (with the same Custodian (IM) or elsewhere) identified by the Pledgor for the receipt of such Transfer (accompanied in the case of certificated securities that cannot be paid or delivered by book-entry by any duly executed instruments of transfer, assignments in blank, transfer tax stamps or any other documents necessary to permit the Pledgor to make legally valid transfers of such certificated securities without further action of the Custodian (IM)); and

(iii) in the case of Other Eligible Support (IM) or Other Posted Support (IM), as specified in Paragraph 13.

"***Valuation Percentage***" means, for any item of Eligible Collateral (IM), the percentage specified in accordance with Paragraph 13.

"***Value***" means, unless otherwise specified in Paragraph 13, for any Calculation Date (IM) or other date for which Value is calculated and subject to Paragraph 5 in the case of a dispute, with respect to:

(i) save as provided in clause (ii) below, Eligible Collateral (IM) or Posted Collateral (IM) that is:

(A) an amount of Cash, the Base Currency Equivalent of such amount multiplied by $(VP - H_{FX})$; and

(B) a security, the Base Currency Equivalent of the bid price obtained by the Calculation Agent (IM) multiplied by $(VP - H_{FX})$;

where:

"***VP***" equals the applicable Valuation Percentage; and

"H_{FX}" equals the applicable FX Haircut Percentage,

provided that, for the purposes of calculating Value under Paragraph 8(b)(iv)(B) or Paragraph 11(a), the VP will be 100% and H_{FX} will be zero;

(ii) Posted Collateral (IM) that consists of items that are, in respect of the relevant posting obligation, deemed as of such date to have a Value of zero pursuant to Paragraph 13, zero; and

(iii) Other Eligible Support (IM) and Other Posted Support (IM), as specified in Paragraph 13.

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Paragraph 13. Elections and Variables

Regime Table.

For the purposes of this Annex, the parties have specified the regulatory regimes (each a "***Regime***" and together the "***Regimes***") applicable to them in their capacity as the Secured Party in the below table (the "***Regime Table***"). For the avoidance of doubt, any Regime that is specified as being applicable in the Regime Table shall not be construed as a representation, admission or acknowledgement that either party is actually regulated under such Regime.

Regime	**Party A as the Secured Party (Party B as the Pledgor)**	**Party B as the Secured Party (Party A as the Pledgor)**
EMIR	Not Applicable	Not Applicable
	Not Applicable	Not Applicable
Prudential	Not Applicable	Not Applicable
	Not Applicable	Not Applicable
CFTC	Applicable	Applicable
	SIMM Exception: Applicable: Fallback to Mandatory Method	SIMM Exception: Applicable: Fallback to Mandatory Method

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SEC	Applicable	Applicable
	SIMM Exception: Applicable: Fallback to Mandatory Method	SIMM Exception: Applicable: Fallback to Mandatory Method
Canada	Not Applicable	Not Applicable
	Not Applicable	Not Applicable
Switzerland	Not Applicable	Not Applicable
	Not Applicable	Not Applicable
Japan	Not Applicable	Not Applicable
	Not Applicable	Not Applicable
Australia	Not Applicable	Not Applicable

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	Not Applicable	Not Applicable
Hong Kong	Not Applicable	Not Applicable
	Not Applicable	Not Applicable
Singapore	Not Applicable	Not Applicable
	Not Applicable	Not Applicable

Regime Table Definitions.

(i) "***Fallback to Mandatory Method***" means, if specified as applicable in the Regime Table with respect to a Regime, ISDA SIMM™ will be the Method applicable to such Regime, but if, to the extent that a party notifies the other that it is mandatory under such Regime for such notifying party to apply the Mandatory Method to one or more transaction types with respect to either the Pledgor's or the Secured Party's posting or collecting obligation, as applicable (specifying in such notice the relevant transaction types), then with effect from the later of (x) the date which is the 5th calendar day after such notice is effectively delivered and (y) the date specified in such notice as the date on which the Mandatory Method becomes mandatory under such Regime (and only in respect of Transactions of the relevant transaction type entered into after the later of the dates in (x) and (y)):

(A) SIMM Exception will be applicable solely with respect to such transaction types; and

(B) the applicable Method for such transaction types will be the Mandatory Method.

(ii) "***Mandatory Method***" means, if specified as applicable in the Regime Table with respect to a Regime, the Method applicable to such Regime is to determine the Margin Amount (IM) by reference to the methodology prescribed pursuant to such Regime which uses a standardized initial margin schedule (such that prescribed percentages are applied to notional amounts before being adjusted, including by a net-to-gross ratio (NGR)).

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General Principles.

Unless otherwise specified or agreed between the parties, the following principles (the "***General Principles***") will apply for the purposes of this Annex and the provisions of this Annex shall be construed accordingly:

(aa) One Way Provisions: One Way Provisions are: Applicable

Posting Party for the purposes of One Way Provisions: Party A

(bb) in respect of a Pledgor and its obligations to post Margin Amount (IM) hereunder, any reference to the term "Regime" or "Regimes" in this Annex is to all Regimes that are specified as applicable in the Regime Table to the other party as the Secured Party; *provided* that each such Regime will, subject to sub-paragraph (cc) below, be included only from the date that the applicable law requires the relevant Secured Party to collect and/or, if applicable, such Pledgor to post initial margin under such Regime (and only for as long as it does so);

(cc) for the purposes of sub-paragraph (bb) above, where one or more Regimes are considered to be the substitute for compliance with one or more other Regimes for the purposes of a posting obligation hereunder, all such Regime(s) will nevertheless continue to be applicable absent agreement in writing between the parties to the contrary;

(dd) the parties acknowledge that the Pledgor may nevertheless be obliged to post to the Secured Party under a regulatory regime which is not specified as a Regime with respect to the Secured Party in the Regime Table. In the event that the Pledgor determines that such regulatory regime requires the Pledgor to post an additional amount to the Secured Party, the Pledgor may request that the Secured Party accept such additional amount and the Secured Party will use reasonable endeavors to accommodate such request;

(ee) subject to sub-paragraph (ff) below, ISDA SIMM™ is the specified "***Method***" for all Covered Transactions (IM) with respect to all Regimes (irrespective of asset class or, as applicable, category applicable to a Transaction under the relevant Regime), whereby:

(1) ISDA SIMM™ will refer to the version of ISDA SIMM™ applicable to the relevant Secured Party unless otherwise specified here: Not specified.

(2) the margin period of risk will be as provided for in such version of ISDA SIMM™; and

(3) the "SIMM Calculation Currency" (also known as "SIMM Reporting Currency") means:

(A) in respect of Party A and its calculations, the Base Currency; and

(B) in respect of Party B and its calculations, the Base Currency;

(ff) if SIMM Exception is specified as applicable with respect to a Regime and a Secured Party in the Regime Table, then solely for the purposes of: (1) the relevant Pledgor's posting obligation to such Secured Party; and (2) Covered Transactions (IM) falling within the relevant specified asset class or, as applicable, category under the relevant Regime, the "***Method***" will instead be as specified in the Regime Table;

(gg) for all Regimes and posting obligations hereunder:

(1) in respect of a Covered Transaction (IM) under a Regime which the parties agree constitutes a 'cross-currency swap', obligations to exchange principal will be disregarded for the purpose of determining the Margin Amount (IM) with respect to such Regime; and

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(2) the following approaches apply for the purposes of calculations in respect of the related type of Covered Transaction (IM):

(A) Unless otherwise specified below, the relevant sensitivities to equity indices, funds and ETFs are addressed by the standard preferred approach where the entire delta is put into the applicable asset class/category for equity indices, funds and ETFs.

If alternative approach is specified here, the parties agree that in respect of the relevant sensitivities, the delta is allocated back to individual equities in equity indices, funds and ETFs: Party A will apply the alternative approach in respect of equity indices, funds and ETFs and Party B will apply the standard approach in respect of equity indices, funds and ETFs.

(B) Unless otherwise specified below, the relevant sensitivities to commodity indices are addressed by the standard preferred approach where the entire delta is put into the applicable asset class/category for commodity indices.

If alternative approach is specified here, the parties agree that in respect of the relevant sensitivities, the delta is allocated back to individual commodities in commodity indices: Alternative approach.

Unless expressly agreed otherwise in writing, any failure by a party to use the applicable approach specified in this sub-paragraph (gg) in its determination of the Margin Amount (IM) will not constitute an Event of Default, Potential Event of Default or Termination Event in respect of such party.

(hh) if more than one Regime is specified in the Regime Table with respect to a Secured Party, then in respect of the Pledgor's obligations to post initial margin hereunder to such Secured Party:

(1) the "***Margin Amount (IM)***" for any Calculation Date (IM) with respect to a party as the Pledgor will be the Strictest Of; and

(2) the Valuation Percentage and FX Haircut Percentage for all Regimes with respect to the Pledgor's posting hereunder will be the Strictest Of;

(ii) in respect of a Pledgor's posting obligation, "***Eligible Currencies***" and "***Eligible Collateral (IM)***" and each related "***Valuation Percentage***" and "***FX Haircut Percentage***", will be as specified in:

Where Party A is the Pledgor: the Eligible Collateral (IM) Schedule.

Where Party B is the Pledgor: the Eligible Collateral (IM) Schedule.

For the purposes hereof:

"***Control Agreement Eligible Collateral (IM) Schedule***" means, in respect of a Pledgor's posting obligation, such items, and related haircuts and currencies, that can be transferred to the Segregated Account by such Pledgor pursuant to the Control Agreement (and/or any related asset schedule or operational document relating to assets held by the relevant Custodian (IM)).

"***Eligible Collateral (IM) Schedule***" means, in respect of a Pledgor's posting obligation, the schedule attached hereto detailing the collateral and haircuts applicable to such collateral;

(jj) the parties may from time to time agree in writing that other regimes also comprise "Regimes" hereunder and that the General Principles be adopted and/or amended to accommodate such additional Regimes;

(kk) to the extent required by a Regime specified as applicable to its posting obligation, the Pledgor will, within a reasonable period of time, procure that any cash credited to the Segregated Account to satisfy its posting obligation hereunder is (i) transferred out of the Segregated Account pursuant to a substitution in accordance with this Annex or (ii) reinvested in accordance with any reinvestment provisions set out in the Control Agreement (unless such cash is otherwise transferred out of the Segregated Account as a Return Amount (IM)). For the avoidance of doubt, upon the expiry of such period, such Cash shall not satisfy the Eligibility Requirements; and

(ll) notwithstanding that a Regime is specified as not applicable in the Regime Table and that no initial margin amounts will be calculated for such Regime under this Annex, the parties agree that, with respect to a party, "***Regime***" for the purposes of the definition of "***Regulatory Event***" and the proviso in the definition of "***ISDA SIMM™***" will include such Regime if it is specified as a "***Substituted Regime***" for that party below:

With respect to Party A, each of the following is a "***Substituted Regime***":

Not specified

With respect to Party B, each of the following is a "***Substituted Regime***":

Not specified

"***Australia***" means Australian Prudential Standard CPS 226 Margining and risk mitigation for non-centrally cleared derivatives published by the Australian Prudential Regulation Authority on December 6, 2016.

"***Canada***" means Guideline E-22, Margin Requirements for Non-Centrally Cleared Derivatives issued by the Canadian Office of the Superintendent of Financial Institutions in February 2016.

"***CEA***" means the U.S. Commodity Exchange Act.

"***CFTC***" means the margin requirements adopted by the U.S. Commodity Futures Trading Commission pursuant to CEA § 4s(e).

"***EMIR***" means Regulation (EU) No 648/2012 of the European Parliament and of the Council of 4 July 2012 on OTC derivatives, central counterparties and trade repositories (including the EMIR RTS).

"***EMIR RTS***" means the published regulatory technical standards on risk-mitigation techniques for OTC-derivative contracts not cleared by a CCP under Article 11(15) of EMIR.

"***Exchange Act***" means the U.S. Securities Exchange Act of 1934.

"***Hong Kong***" means Chapter CR-G-14 "Non-centrally Cleared OTC Derivatives Transactions – Margin and Other Risk Mitigation Standards" in the Banking Supervisory Policy Manual issued by the Hong Kong Monetary Authority.

"***ISDA SIMM™***" means, where specified as the applicable Method in respect of a Regime, that the initial margin amount for the Covered Transactions (IM) in the relevant asset class or, as applicable, category under the relevant Regime will be determined through use of ISDA SIMM™ as published by International Swaps and Derivatives Association, Inc.; *provided* that (A) with respect to a Secured Party, if approval of a particular version of ISDA SIMM™ by a governmental or regulatory authority is required under law applicable to such party in respect of a Regime, ISDA SIMM™ will mean the particular version of ISDA SIMM™ subject to an initial application for approval and, following initial approval, the most recently approved (even if subsequently withdrawn) for use by such party by the applicable government or regulatory authority(ies) or (B) if such model approval is not required, the version of ISDA SIMM™ used will be the latest published model for which the implementation deadline designated by International Swaps and Derivatives Association, Inc. has passed.

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"***Japan***" means the margin rules adopted by the Financial Services Agency of Japan pursuant to Article 40, Item 2 of the Financial Instruments and Exchange Act (*kin'yuu shouhin torihiki hou*) (Act No. 25 of 1948) and by the Ministry of Agriculture, Forestry and Fisheries and the Ministry of Economy, Trade and Industry pursuant to the Commodity Derivatives Act (*shouhin sakimono torihiki hou*) (Act No. 239 of 1950) (including their subordinated regulations and the related supervisory guidelines).

"***Prudential***" means the margin requirements adopted by a "prudential regulator," (as defined in CEA § 1a(39)) pursuant to CEA § 4s(e) and Exchange Act § 15F(e).

"***SEC***" means the margin requirements adopted by the U.S. Securities and Exchange Commission pursuant to Exchange Act § 15F(e).

"***Singapore***" means the Guidelines on Margin Requirements for Non-centrally Cleared OTC Derivatives Contracts issued by the Monetary Authority of Singapore (MAS) pursuant to section 321 of the Securities and Futures Act, Chapter 289 of Singapore.

"***Strictest Of***" means:

(i) in respect of the Margin Amount (IM) applicable to a Pledgor's posting obligation hereunder, that:

(A) a Margin Amount (IM) will be determined in respect of each Regime applicable to such posting obligation pursuant to the Method specified as applicable to each such Regime (whereby such amount will be determined for each such Regime solely by reference to the applicable Covered Transactions (IM) under such Regime); and

(B) the Margin Amount (IM) to be used for the purposes of this Annex will be the greatest Margin Amount (IM) determined under paragraph (A) above; and

(ii) in respect of Valuation Percentages and FX Haircut Percentages applicable to a Pledgor's posting obligation hereunder, that:

(A) the Valuation Percentage to be applied to an item of Eligible Collateral (IM) will be the lowest Valuation Percentage specified for such item in accordance with General Principle (ii) with respect to a party (as the Pledgor); *provided* that if at any time such Valuation Percentage is greater than the maximum permitted valuation percentage (prescribed or implied) for such item under the requirements of all Regimes, then the Valuation Percentage with respect to such item and such party (as the Pledgor) will be such maximum permitted valuation percentage; and

(B) the FX Haircut Percentage will be the highest haircut percentage specified in accordance with General Principle (ii); *provided* that if at any time such FX Haircut Percentage is less than the highest haircut percentage applicable under all Regimes for a currency mismatch with the Termination Currency applicable to the relevant Secured Party, the FX Haircut Percentage relating to such posting obligation will be such highest haircut percentage.

The parties will as soon as reasonably practicable, following the request of either party, update the Control Agreement (and/or any related asset schedule or operational document relating to assets held by the relevant Custodian (IM)) and/or the types of items which constitute Eligible Collateral (IM) specified in the Eligible Collateral (IM) Schedule to the extent any such percentages change, in each case as applicable.

"***Switzerland***" means the margin rules adopted by the Swiss Federal Council pursuant to Article 110-111 of the Financial Market Infrastructure Act as well as Articles 100 to 107 and Annexes 3 to 5 of the Financial Market Infrastructure Ordinance.

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(a) ***Base Currency.*** "***Base Currency***" means: United States Dollar.

(b) ***"Covered Transactions (IM)"; Security Interest for "Obligations"***.

(i) The term "***Covered Transactions (IM)***" as used in this Annex means, in respect of a Regime, any outstanding Transaction that is of a type which is, when entered into, and which is, as of any date of determination, subject to law applicable to either party requiring the collection or delivery of initial margin under such Regime.

For the purposes of the foregoing, a Transaction will be deemed to be entered into if an amendment, novation or other event occurs with respect to such Transaction such that either party is required to collect or deliver initial margin in respect of such Transaction under the relevant Regime.

(ii) The term "***Obligations***" as used in this Annex includes the following additional obligations: None specified (subject to the One Way Provisions, if applicable).

(c) ***Credit Support Obligations***.

(i) ***Selection of Margin Approach.*** The parties hereby agree to implement the following Margin Approach: Distinct Margin Flow (IM) Approach

(ii) "***Calculation Agent (IM)***" for each party as the Pledgor will be:

the party making the demand for purposes of Paragraphs 3, 4(c) and 5 and the Secured Party for the purposes of Paragraph 4(d).

(iii) ***Delivery Amount (IM) and Return Amount (IM).***

(A) "***Delivery Amount (IM)***" has the meaning specified in Paragraph 3(a), subject to the General Principles.

(B) "***Return Amount (IM)***" has the meaning specified in Paragraph 3(b), subject to the General Principles.

(iv) ***Other Eligible Support (IM).*** The following items will qualify as "***Other Eligible Support (IM)***" for the party specified (as the Pledgor): None specified.

(v) ***Ineligible Credit Support (IM) Provisions.***

(A) ***Ineligible Credit Support (IM).*** Upon effective delivery of an Ineligibility Notice by a party with respect to a posting obligation of a Pledgor hereunder: (i) each item (or a specified amount of such item) identified in such notice will, to the extent comprised in the related Posted Credit Support (IM), have a Value of zero on and from the Ineligibility Date with respect to such posting obligation; and (ii) save in circumstances where the Secured Party objected in writing to the Transfer of such item to the Segregated Account prior to such Transfer on the basis that such item has ceased to satisfy (or never did satisfy) one or more of the Eligibility Requirements but the relevant Ineligibility Date has not yet occurred due to the minimum five Local Business Days' notice period, until the occurrence of such Ineligibility Date there shall be no Potential Event of Default or Event of Default arising solely out of such type of items comprising Posted Credit Support (IM) with respect to such posting obligation. The parties will use reasonable endeavors, as soon as reasonably practicable following effective delivery of such notice, to update the Control Agreement (and/or any related asset schedule or operational document relating to assets held by the relevant Custodian (IM)) and/or the types of items which constitute Eligible Collateral

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(IM) specified in the Eligible Collateral (IM) Schedule in order to mitigate against the risk of such event recurring, in each case, as applicable.

For the purpose of limb (ii) of the definition of Value, Posted Collateral (IM) that consists of items that are, in respect of the relevant posting obligation, the subject of a continuing Ineligibility Notice, will, subject to Paragraph 13(c)(v)(C) below, be deemed to have a value of zero from and including the applicable Ineligibility Date.

(B) ***Return of Posted Credit Support (IM) with a Value of Zero.*** Subject to Paragraph 4(a), the Secured Party will, promptly upon demand (but in no event later than the time at which a Transfer would be due under Paragraph 4(b) with respect to a demand for the Transfer of Eligible Credit Support (IM) or Posted Credit Support (IM)), Transfer to the Pledgor any item of Posted Credit Support (IM) (or the specified amount of such item) that as of the date of such demand has a Value of zero in respect of the Pledgor's posting obligation; *provided* that the Secured Party will only be obligated to Transfer any Posted Credit Support (IM) in accordance with this Paragraph 13(c)(v)(B), if, as of the date of Transfer of such item, the Pledgor has satisfied all of its Transfer obligations under this Annex, if any.

(C) ***Reinstatement of Credit Support Eligibility.*** Upon a reasonable request by the Pledgor, the Secured Party will determine whether an item (or a specified amount of such item) that was the subject of a prior Ineligibility Notice would currently satisfy the Eligibility Requirements applicable to the Pledgor and/or the Secured Party in respect of a Pledgor's posting obligation hereunder. If the Secured Party determines that as of such date of determination such item (or specified amount of such item) satisfies such Eligibility Requirements, the Secured Party will, promptly following such determination, rescind the relevant Ineligibility Notice with respect to such item (or specified amount of such item) by written notice to the Pledgor. Upon effective delivery of such notice, the relevant item (or specified amount of such item) will no longer be deemed to have a Value of zero by virtue of such prior Ineligibility Notice. The parties will use reasonable endeavors, as soon as reasonably practicable following effective delivery of such notice, to update the Control Agreement (and/or any related asset schedule or operational document relating to assets held by the relevant Custodian (IM)) and/or the types of items which constitute Eligible Collateral (IM) specified in the Eligible Collateral (IM) Schedule, in each case as applicable.

(D) ***Certain Definitions.***

"***Eligibility Requirements***" means, in respect of an item of Eligible Credit Support (IM) and a party:

(i) the requirements for such item to be Eligible Credit Support (IM) as specified herein; and

(ii) collateral eligibility requirements under law applicable to such party requiring the collection and/or posting of initial margin.

To the extent relevant under law applicable to such party requiring the collection and/or posting of initial margin, for the purposes of construing the Eligibility Requirements, the relevant requirements under law may be applied on a portfolio basis (including, without limitation, for the purposes of applying any concentration limits), such that an entire portfolio or group of items may be the subject of an Ineligibility Notice and will include, if relevant, whether or not the relevant item comprises financial collateral (or equivalent) for the purposes of Directive 2002/47/EC of the European Parliament and Council of 6th June 2002 on financial collateral arrangements as implemented, or whose terms are otherwise substantially reflected, in the relevant jurisdiction.

"***Ineligibility Date***" means the date on which the relevant item (or a specified amount of such item) has ceased to satisfy (or never did satisfy), or will cease to satisfy, one or more of the Eligibility Requirements applicable to the relevant party for all purposes hereunder; *provided* that, if it never did satisfy the Eligibility Requirements or such date is earlier than the fifth Local Business Day following effective delivery of such Ineligibility Notice, the Ineligibility Date will be the fifth Local Business Day following effective delivery of such Ineligibility Notice.

"***Ineligibility Notice***" means a written notice from a party to the other party in which the notifying party:

(i) represents that it has determined that one or more items (or a specified amount of any such item) has ceased to satisfy (or never did satisfy), or as of a specified date will cease to satisfy, one or more of the Eligibility Requirements;

(ii) lists the item(s) (and, if applicable, the specified amount) that have ceased to satisfy (or never did satisfy), or as of a specified date will cease to satisfy, one or more of the Eligibility Requirements;

(iii) describes the reason(s) why such item(s) (or the specified amount thereof) have ceased to satisfy (or never did satisfy), or will cease to satisfy, one or more of the Eligibility Requirements; and

(iv) specifies the Ineligibility Date.

(vi) ***Thresholds (IM); Minimum Transfer Amount (IM); Rounding.***

(A) "***Threshold (IM)***" means with respect to Party A: zero, unless otherwise agreed between the parties.

"***Threshold (IM)***" means with respect to Party B: zero, unless otherwise agreed between the parties.

(B) "***Minimum Transfer Amount (IM)***" means with respect to Party A at any time: USD 300,000, unless otherwise agreed between the parties; and

"***Minimum Transfer Amount (IM)***" means with respect to Party B at any time: USD 300,000, unless otherwise agreed between the parties;

provided that, in the case of either Party A or Party B, if the Credit Support Amount (IM) at such time with respect to such party as the Pledgor is zero, the Minimum Transfer Amount (IM) with respect to the other party as the Secured Party shall be zero.

(C) ***Rounding.***

(1) the Delivery Amount (IM) will be rounded up to the nearest integral multiple of 10,000 units of the Base Currency; and

(2) the Return Amount (IM) will be rounded down to the nearest integral multiple of 10,000 units of the Base Currency;

provided that, if the Credit Support Amount (IM) at such time with respect to a party as the Pledgor is zero, the Return Amount (IM) will not be rounded.

(vii) ***Transfer Timing.*** "***Regular Settlement Day***" has the meaning specified in Paragraph 12, unless otherwise specified here: Not specified.

(d) ***Calculation(s) and Timing.***

(i) "***Calculation Date (IM)***" has the meaning specified in Paragraph 12, unless otherwise specified here: Not specified.

For purposes of determining the Calculation Date (IM), "***Calculation Date Location (IM)***" means, with respect to each party, each city, region, or country specified below:

Party A: New York

Party B: New York

(ii) "***Calculation Time (IM)***" has the meaning specified below:

The close of business in New York on the Local Business Day prior to the Calculation Date (IM).

(iii) "***Notification Time***" has the meaning specified below:

With respect to Party A acting in its capacity as the Pledgor and Party B acting in its capacity as the Secured Party 11 a.m., New York time, on a Local Business Day.

With respect to Party B acting in its capacity as the Pledgor and Party A acting in its capacity as the Secured Party: 11 a.m., New York time on a Local Business Day.

(e) ***Conditions Precedent.***

(i) The provisions of Paragraph 4(a) will apply, unless otherwise specified here:

Paragraph 4(a) will not apply

(ii) ***Specified Condition and Access Condition.*** For purposes of the provisions of Paragraph 4(a), a Pledgor Rights Event or Secured Party Rights Event with respect to the other party shall constitute a "***Specified Condition***". For purposes of the definitions of the NEC Event, Secured Party Rights Event or Pledgor Rights Event (in each case, if applicable), the following Termination Event(s) (to the extent that such Termination Events are applicable in respect of the relevant party under this Agreement) specified below will be an "***Access Condition***" with respect to the party so specified if: (a) that party is an Affected Party with respect to such Termination Event; and (b) all Transactions are Affected Transactions:

	Party A	**Party B**
Illegality	☐	☐
Force Majeure Event	☐	☐
Tax Event	☐	☐
Tax Event Upon Merger	☒	☒
Credit Event Upon Merger	☒	☒
Additional Termination Event(s):		
…….	☐	☐
…….	☐	☐

(f) ***Substitutions.***

(i) "***Substitution Date***" has the meaning specified in Paragraph 4(d)(ii); and

(ii) ***Consent.*** If specified here as applicable, then the Pledgor must obtain the Secured Party's consent for any substitution pursuant to Paragraph 4(d): Consent is: Applicable, provided that it shall not be unreasonably witheld;

provided that Paragraph 4(d) will be subject to Paragraph 13(m)(vi) (***Relationship with the Control Agreement***), if applicable.

(g) ***Dispute Resolution.***

(i) "***Resolution Time***" means 1:00 p.m., London time, on the Local Business Day following the date on which the notice is given that gives rise to a dispute under Paragraph 5.

(ii) "***Recalculation Date***" means the Calculation Date (IM) that gives rise to the dispute under Paragraph 5; *provided* that, if a subsequent Calculation Date (IM) occurs under Paragraph 3 prior to the resolution of the dispute, the "***Recalculation Date***" means the most recent Calculation Date (IM) under Paragraph 3.

(iii) ***Recalculation of Credit Support Amount (IM).*** For the purpose of Paragraph 5(iv)(A), the Credit Support Amount (IM) will be calculated as follows: the parties agree to consult (including, without limitation, exchanging reasonable details of their calculations and any supporting data as part of the consultation process; *provided* that the parties will not be required to exchange any proprietary or confidential information) in good faith and in a commercially reasonable and timely manner to resolve the dispute and agree on the amount of the relevant Credit Support Amount (IM). The Calculation Agent (IM) will recalculate related amounts using the amount agreed by the parties.

(iv) ***Recalculation of Value.*** For the purpose of Paragraphs 5(iv)(A) and (B), the Value of Eligible Credit Support (IM) or Posted Credit Support (IM), as applicable, will be calculated in accordance with the following procedure:

With respect to Party A acting in its capacity as the Pledgor and Party B acting in its capacity as the Secured Party: Consultation Procedure

With respect to Party B acting in its capacity as the Pledgor and Party A acting in its capacity as the Secured Party: Consultation Procedure

For the purposes hereof:

"***Consultation Procedure***" means the parties agree to consult (including, without limitation, exchanging reasonable details of their calculations and any supporting data as part of the consultation process; *provided* that the parties will not be required to exchange any proprietary or confidential information) in good faith and in a commercially reasonable and timely manner to resolve the dispute and agree on the Value. The Calculation Agent (IM) will recalculate related amounts using such amount agreed by the parties.

(v) ***Alternative.*** The provisions of Paragraph 5 will apply.

(h) "***Secured Party Rights Event***" means:

(i) an Early Termination Date in respect of all Transactions has occurred or been designated as the result of an Event of Default or Access Condition with respect to the Pledgor; or

(ii) if "***Failure to Pay Early Termination Amount***" is specified as applicable here, an Event of Default has occurred and is continuing with respect to the Pledgor and its obligation to pay an amount under Section 6(e) of this Agreement relating to an Early Termination Date with respect to all Transactions: Failure to Pay Early Termination Amount is: Not Applicable.

Notwithstanding the foregoing, if "***Control Agreement Secured Party Rights Event***" is specified as applicable here with respect to a party as the Pledgor, a "***Secured Party Rights Event***" will only occur upon the occurrence of one or more of the events that the Pledgor and the Secured Party have agreed, in the Control

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Agreement or otherwise, will permit the Secured Party to exercise sole and exclusive control of the Posted Collateral (IM) held under the Control Agreement:

With respect to Party A acting in its capacity as the Pledgor and Party B acting in its capacity as the Secured Party: Control Agreement Secured Party Rights Event is: Not Applicable.

With respect to Party B acting in its capacity as the Pledgor and Party A acting in its capacity as the Secured Party: Control Agreement Secured Party Rights Event is: Not Applicable.

(i) ***Notice of Exclusive Control***. Each party as the Secured Party covenants to the other party as the Pledgor that:

(i) it will not give a Notice of Exclusive Control under the Control Agreement unless and until an NEC Event occurs and is continuing and that it will deliver a copy of the Notice of Exclusive Control to the Pledgor when it is delivered to the Custodian (IM); and

(ii) it will not exercise any rights of access in respect of the Posted Credit Support (IM) held by the Custodian (IM) arising from delivery of such Notice of Exclusive Control unless and until a Secured Party Rights Event occurs and is continuing.

"***NEC Event***" means:

(A) if the Control Agreement permits delivery of a Notice of Exclusive Control separately from instructions from the Secured Party to the Custodian (IM) regarding the transfer of assets from the relevant Segregated Account: (1) an Event of Default or Access Condition with respect to the Pledgor has occurred and is continuing or (2) an Early Termination Date in respect of all Transactions has occurred or been designated as the result of an Event of Default or Access Condition with respect to the Pledgor; or

(B) otherwise, a Secured Party Rights Event has occurred and is continuing.

"***Notice of Exclusive Control***" means a notice that a secured party is entitled to give under the Control Agreement that has or will have the effect of giving such party the exclusive right to direct the Custodian (IM) to block withdrawals or to control the Posted Credit Support (IM).

Notwithstanding the foregoing, if "***Control Agreement NEC Event***" is specified as applicable here with respect to a party as the Pledgor, a "***NEC Event***" will only occur upon the occurrence of one or more of the events that the Pledgor and the Secured Party have agreed, in the Control Agreement or otherwise, will permit the Secured Party to deliver a Notice of Exclusive Control under the Control Agreement:

With respect to Party A acting in its capacity as the Pledgor and Party B acting in its capacity as the Secured Party: Control Agreement NEC Event is: Not Applicable.

With respect to Party B acting in its capacity as the Pledgor and Party A acting in its capacity as the Secured Party: Control Agreement NEC Event is: Not Applicable.

(j) "***Pledgor Rights Event***" means an Early Termination Date in respect of all Transactions has occurred or been designated as the result of an Event of Default or Access Condition with respect to the Secured Party; *provided* that:

(i) if "***Pledgor Full Discharge Condition***" is specified as applicable here, a Pledgor Rights Event will not occur unless the Pledgor (A) has provided a statement to the Secured Party in respect of such Early Termination Date pursuant to Section 6(d) of this Agreement and (B) is claiming that an amount under Section 6(e) of this Agreement (I) is payable to the Pledgor, (II) is zero or (III) is payable by the Pledgor but (x) has been discharged in full together with any accrued interest or (y) will be discharged in full together with any accrued interest in whole or in part pursuant to the Pledgor's exercise of the Delivery in Lieu Right

as notified in writing by the Pledgor to the Secured Party in connection with its delivery of a Pledgor Access Notice, if applicable: Pledgor Full Discharge Condition is: Not Applicable;

and

(ii) if "***Cooling-off Period Condition***" is specified as applicable here, a Pledgor Rights Event will not occur unless two Local Business Days have passed following the provision of a statement to the Secured Party pursuant to Section 6(d) of this Agreement: Cooling-off Period Condition is: Not Applicable.

Notwithstanding the foregoing, if "***Control Agreement Pledgor Rights Event***" is specified as applicable here with respect to a party as the Pledgor, a "***Pledgor Rights Event***" will only occur upon the occurrence of one or more of the events that the Pledgor and the Secured Party have agreed, in the Control Agreement or otherwise, will permit the Pledgor to exercise sole and exclusive control of the Posted Collateral (IM) held under the Control Agreement:

With respect to Party A acting in its capacity as the Pledgor and Party B acting in its capacity as the Secured Party: Control Agreement Pledgor Rights Event is: Not Applicable.

With respect to Party B acting in its capacity as the Pledgor and Party A acting in its capacity as the Secured Party: Control Agreement Pledgor Rights Event is: Not Applicable.

(k) ***Pledgor Access Notice.*** Each party as the Pledgor covenants to the other party as the Secured Party that:

(i) it will not give a Pledgor Access Notice under the Control Agreement unless and until a Pledgor Rights Event occurs and that it will deliver a copy of the Pledgor Access Notice to the Secured Party when it is delivered to the Custodian (IM); and

(ii) it will not exercise any rights or remedies arising from the delivery of such Pledgor Access Notice with respect to Posted Credit Support (IM) held by the Custodian (IM) unless and until a Pledgor Rights Event occurs,

except in order to exercise its right to return of Posted Credit Support (IM) pursuant to Paragraph 8(d) of this Annex.

"***Pledgor Access Notice***" means a notice that a pledgor is entitled to give under the Control Agreement that has the effect of giving such party exclusive right to direct the Custodian (IM) to block withdrawals or to control the Posted Credit Support (IM).

(l) ***Modification to Pledgor's Rights and Remedies.***

Delivery in Lieu Right. If specified as applicable here, the below (the "***Delivery in Lieu Right***") will be inserted at the end of Paragraph 8(b): Delivery in Lieu Right is: Applicable.

"The Pledgor may, without the consent of the Secured Party, direct the Custodian (IM) to transfer to the Secured Party so much of the Posted Collateral (IM) as is the Cash equivalent, by reference to the fair market value at or about the time of such transfer as determined by the Pledgor, necessary to satisfy (together with any other payments already made by the Pledgor) all amounts payable by the Pledgor pursuant to Section 6(e) (together with any accrued interest). Such Section 6(e) payment obligation (together with any obligation to pay interest) of the Pledgor will be deemed satisfied to the extent of such transfer. At the time of giving directions to the Custodian (IM) for such transfer, the Pledgor shall also send a notice to the Secured Party specifying the details of the Posted Collateral (IM) being transferred and the related Cash equivalent as determined by the Pledgor. For the avoidance of doubt, the Pledgor in all events will remain liable for any amounts remaining unpaid after such transfer, and to the extent of any transfer of Posted Collateral (IM) under this subsection, the Pledgor waives any right to redemption or to require the Secured Party to make

disposition of, account for any surplus in respect of, or request the sale of such Posted Collateral (IM) by the Secured Party."

(m) ***Custody Arrangements.***

The Custodian (IM) in respect of each party as the Pledgor is:

	Party A	**Party B**
Name of Custodian (IM)	Liberty Bank	Evergreen Commonwealth Bank

(i) "***Control Agreement***" means, with respect to a party as the Pledgor and the other party as the Secured Party, the account control agreement among such party as the Pledgor, the other party as the Secured Party and the relevant Custodian (IM) entered into in relation to each Segregated Account.

(ii) ***Custodian (IM) Risk***. The provisions of Paragraph 6(a) will apply unless otherwise specified below:

Not specified

(iii) ***Custodian Event***. If specified as applicable here, has the meaning specified below: Custodian Event is: Applicable

"***Custodian Event***" means, with respect to the Pledgor and its posting obligation hereunder: (1) any failure of the Pledgor's Custodian (IM) to comply with instructions sent by the Pledgor in accordance with the Control Agreement to effect any Transfer obligation of the Pledgor in accordance with this Annex (other than any such failure caused solely by the action or inaction of the Pledgor); (2) the Pledgor's Custodian (IM) ceases to comply with or perform, or is otherwise unable to comply with or perform, any agreement or obligation to be complied with or performed by it in accordance with the Control Agreement; (3) notice by the Pledgor's Custodian (IM) is given to terminate the Control Agreement or the Control Agreement expires or terminates, whether in accordance with the terms thereof or otherwise; (4) the Pledgor's Custodian (IM) disaffirms, disclaims, repudiates or rejects, in whole or in part, or challenges the validity of the Control Agreement; or
(5) the Pledgor's Custodian (IM) makes a unilateral amendment to the terms of the Control Agreement or its status otherwise changes, in either case resulting in either of the parties ceasing to be in compliance with their regulatory obligations as determined by such party acting in good faith and in a commercially reasonable manner.

If a Custodian Event has occurred and is continuing after the CE End Date, it will constitute an Additional Termination Event and for purposes of such Additional Termination Event:

(A) each Covered Transaction (IM) will be an Affected Transaction; and

(B) both the Pledgor and the Secured Party will be the Affected Parties.

For as long as the Custodian Event is continuing but on or prior to the relevant CE End Date, the Pledgor will attempt to identify a replacement custodian which is reasonably acceptable to the Secured Party and the parties agree to use reasonable endeavors to negotiate in good faith a successor control agreement with a replacement custodian and implement such amendments to the terms of this Annex as are reasonably necessary.

"***CE End Date***" means, in relation to a Custodian Event, the earlier to occur of:

(A)(1) other than in the case of a Custodian Event with respect to limb (3) of the definition of Custodian Event (a "***Custodian Resignation Event***"), the day falling 90 calendar days after the occurrence of such event;

(2) in the case of a Custodian Resignation Event where advance notice is given in accordance with the Control Agreement, the later of:

(x) the date the notice is given; and

(y) the 28th calendar day to fall prior to the date on which the Control Agreement will terminate in accordance with its terms with respect to such notice (such date of termination under the Control Agreement being the "***Release Date***");

provided that, if:

(I) an Early Termination Date has been designated as a result of a Custodian Resignation Event; and

(II) only one party has effectively provided a statement (the "***Timely Statement***") to the other party pursuant to Section 6(d) of this Agreement on the later of (a) the date falling 5 calendar days prior to the Release Date and (b) the 2nd Local Business Day after the date on which notification of such Timely Statement to the other party is effective,

then, notwithstanding the provisions of Section 6(e)(ii)(2) (*Two Affected Parties*) of this Agreement, the amount payable under Section 6(e) shall be determined and be payable solely on the basis of the Timely Statement (as if, for all purposes, the party which has provided the Timely Statement were the party which is not the Affected Party and the other party were the sole Affected Party); or

(3) in case of a Custodian Resignation Event where there is no advance notice in accordance with the Control Agreement, the date the Control Agreement expires or terminates; and

(B) effective delivery of a written notice by a party that a Regulatory Event has occurred with respect to such party in respect of such Custodian Event (specifying in reasonable detail in such notice the nature of such Regulatory Event).

If Custodian Event is applicable, any event or circumstance that constitutes or gives rise to a Custodian Event will not constitute or give rise to an Event of Default under Section 5(a)(iii).

"***Regulatory Event***" means, in respect of a party and a Custodian Event, that:

(A) such party has received notice in writing from the relevant governmental or regulatory authority with proper jurisdiction that it has ceased or will cease to comply with its regulatory obligations under any Regime; or

(B) a relevant governmental or regulatory authority with proper jurisdiction has made a public statement to the effect of (A),

in each case, as a result of the occurrence of such Custodian Event.

(iv) ***The Control Agreement as a Credit Support Document.***

(A) With respect to Party A acting in its capacity as the Pledgor and Party B acting in its capacity as the Secured Party: the Control Agreement is not a Credit Support Document.

(B) With respect to Party B acting in its capacity as the Pledgor and Party A acting in its capacity as the Secured Party: the Control Agreement is not a Credit Support Document.

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(v) ***Inconsistency with the Control Agreement.*** Unless "***Inconsistency with the Control Agreement***" is specified as not applicable here with respect to a party as the Pledgor, with respect to such party as the Pledgor, in the event of any inconsistency between this Annex and the Control Agreement, this Annex will prevail over the Control Agreement:

(A) With respect to Party A acting in its capacity as the Pledgor and Party B acting in its capacity as the Secured Party: Inconsistency with the Control Agreement is Not Applicable.

(B) With respect to Party B acting in its capacity as the Pledgor and Party A acting in its capacity as the Secured Party: Inconsistency with the Control Agreement is Not Applicable.

(vi) ***Relationship with the Control Agreement.***

Unless this provision is specified as not applicable below with respect to a party as the Pledgor, the parties recognize that the Control Agreement is a means by which the parties can perform their obligations or, as applicable, exercise their rights hereunder and in furtherance thereof agree to the following:

(A) each of the Pledgor and the Secured Party consent to any substitutions of Posted Credit Support (IM) for replacement Eligible Credit Support (IM) (or other assets) that are made by the Pledgor and/or the Custodian (IM) in accordance with the terms of the Control Agreement (without prejudice to the subsequent application of the Ineligible Credit Support (IM) provisions);

(B) notwithstanding differences in methodology or timing, if the Custodian (IM) determines a Value (or any component thereof) and/or Base Currency Equivalent pursuant to the terms of the Control Agreement then such Value and/or Base Currency Equivalent so determined will be used for all purposes in this Annex (other than Paragraph 8) (and the Calculation Agent (IM) will not be obliged to make such determination); *provided* that, where an item has a Value of zero by virtue of an Ineligibility Notice, it will do so for the purposes of this Annex irrespective of the Custodian (IM) Value;

(C) the Secured Party and the Pledgor will not be required to serve demands under Paragraph 3(a) or (b), respectively, if such demands are effectively made under the terms of the Control Agreement (and to the extent that both parties are required (or entitled) under the Control Agreement to convey instructions to the Custodian (IM) which reflect the calculations hereunder, each party agrees to convey such instructions in good faith and in a commercially reasonable manner);

(D) the parties will give such instructions contemplated by the Control Agreement to the Custodian (IM) as may be necessary in order for obligations hereunder to be performed or rights hereunder to be exercised (or exercisable) by a party, and where applicable, no later than the Notification Time. For the avoidance of doubt, the Secured Party will bear no liability for any failure of the Custodian (IM) to effect the Transfer of any Return Amount (IM) if the Secured Party has sent the appropriate instructions (if any are required); and

(E) the Secured Party's obligations under Paragraph 8(b)(iii) or the operation of the Delivery in Lieu Right (if applicable) is without prejudice to any delay or contest period expressly specified in the Control Agreement that applies in such circumstances.

For purposes of this Paragraph 13(m)(vi), "***Relationship with the Control Agreement***" is applicable with respect to a party as the Pledgor, unless otherwise specified here:

(A) With respect to Party A acting in its capacity as the Pledgor and Party B acting in its capacity as the Secured Party: Relationship with the Control Agreement is Applicable.

(B) With respect to Party B acting in its capacity as the Pledgor and Party A acting in its capacity as the Secured Party: Relationship with the Control Agreement is Applicable.

(vii) ***Collateral Access Breach Additional Termination Event***. If specified as applicable here, has the meaning specified below: Collateral Access Breach is: Applicable.

"***Collateral Access Breach***" means a party hereto (the "***Breaching Party***") (i) breaches one or more of the covenants specified herein related to the delivery of a Notice of Exclusive Control or a Pledgor Access Notice or (ii) acting in its capacity as a Secured Party, delivers a notice to the Custodian (IM) instructing the Custodian (IM) to deliver Posted Collateral (IM) to it or anyone other than the Pledgor or at the Pledgor's direction prior to the occurrence of a Secured Party Rights Event.

If Collateral Access Breach is applicable and a Collateral Access Breach has occurred and is continuing after the CAB End Date, it will constitute an Additional Termination Event and for purposes of such Additional Termination Event:

(A) each Transaction will be an Affected Transaction; and

(B) the Breaching Party will be the sole Affected Party.

"***CAB End Date***" means the 5th Local Business Day(s) following the date on which the related Collateral Access Breach occurs.

If Collateral Access Breach is applicable, any event or circumstance that constitutes or gives rise to a Collateral Access Breach will not constitute or give rise to an Event of Default under Section 5(a)(iii).

(n) ***Additional information relating to Regulatory Compliance and Concentration Limits***. If specified as applicable here, each party will as soon as reasonably practicable following a request by the other party provide such information as to its classification and/or status relating to collateral eligibility requirements under law applicable to such other party requiring the collection and/or posting of initial margin (including, without limitation, and by way of example, whether it is an institution identified as a "G-SII" or "O-SII" under paragraph 3, Article 8 of the EMIR RTS) as may be reasonably required from time to time: Additional information relating to Regulatory Compliance and Concentration Limits is: Not Applicable.

Unless expressly agreed otherwise in writing, any misrepresentation with respect to such information will not constitute an Event of Default, Potential Event of Default or Termination Event under this Agreement in respect of such party.

(o) ***Other Eligible Support (IM) and Other Posted Support (IM).***

(i) "***Value***" with respect to Other Eligible Support (IM) and Other Posted Support (IM) means: Not Applicable.

(ii) "***Transfer***" with respect to Other Eligible Support (IM) and Other Posted Support (IM) means: Not Applicable.

(p) ***Demands and Notices.***

All demands, specifications and notices under this Annex will be made pursuant to the Notices Section of this Agreement, unless otherwise specified here:

(i) in respect of Party A:

Address: 200 Harbor Plaza, 18th Floor, New York, NY 10281

Attention: Derivatives and Collateral Operations

Telephone: +1 (212) 555-4180

Email: collateral.notices@atlanticmeridian.com

(ii) in respect of Party B:

Address: 455 Canton Avenue, Suite 900, New York, NY 58903

Attention: Collateral Management

Telephone: +1 (212) 555-7724

Email: collateral.notices@bluewaterunion.com

(q) ***Amendment to "Termination Currency".***[6] The definition of "***Termination Currency***" has the meaning specified in the Schedule, unless a currency is specified below as the "***Termination Currency***":

Amendment to "***Termination Currency***" is: Not Applicable

(r) ***Process Agent.*** For the purpose of Paragraph 11(b)(ii) of this Agreement:

Party A appoints as its Process Agent: the entity appointed as process agent under the schedule to the applicable ISDA Master Agreement.

Party B appoints as its Process Agent: the entity appointed as process agent under the schedule to the applicable ISDA Master Agreement.

(s) ***Amendment to "Minimum Transfer Amount".***[8]

(i) The definition of "***Minimum Transfer Amount***" in any Other Regulatory CSA has the meaning specified in such Other Regulatory CSA, unless an amount is specified below as the "***Minimum Transfer Amount***".

Amendment to "***Minimum Transfer Amount***" is Not Applicable.

(ii) "***Other Regulatory CSA***" means an Other CSA in respect of which some or all the Transactions margined thereunder are subject to the margining obligations under one or more Regimes or Substituted Regimes.

(t) ***Interpretation.*** The provisions of Paragraph 11(g) will apply unless otherwise specified below:

Not specified

(u) ***Other Provisions.***

(i) If "One Way Provisions" are specified as applicable under the General Principles, the following provisions will apply:

(A) The term "***Pledgor***" as used in this Annex means the Posting Party only and the term "***Secured Party***" as used in this Annex means the party who is not the Posting Party (the "***Other Party***") and the remaining provisions of the Annex shall be construed accordingly.

In particular, but without limitation:

(1) only the Other Party will (i) benefit from the security interest created under this Annex by the Posting Party and (ii) have the right to require a transfer of a Delivery Amount (IM) under Paragraph 3; and

(2) the Other Party does not undertake any of the covenants or grant any of the rights with respect to itself or its property that it would otherwise undertake or grant as the Pledgor under this Annex.

(B) The following additional obligations will be included in the term "***Obligations***": "With respect to the Posting Party as the Pledgor, all present, future, actual and contingent obligations of the Posting Party to the Other Party under any Other CSA (including, without limitation, to pay default interest or equivalent amounts arising from a failure by the Posting Party as a secured party thereunder to comply with its obligations to transfer or otherwise procure the return of initial margin to the Other Party)".

(ii) ***Loss of Required Model Approval.*** If ISDA SIMM™ or another model, including a model operated by a third-party vendor or the other party, is to be used for any purposes hereunder and a party (i) does not receive approval (where at the date of this Annex the model is subject to an initial application for approval), (ii) loses an approval required from any governmental or regulatory authority for such use or (iii) such use is otherwise prohibited by a governmental or regulatory authority, then it will not constitute an Event of Default, Potential Event of Default or Termination Event under this Agreement and shall not affect the applicable Method with respect to any Regime except to the extent (if any) specified in the Regime Table.

(iii) ***Japanese Securities Provisions (Shichiken).*** The provisions (the "***Japanese Securities Provisions***") in the Recommended Amendment Provisions for the ISDA New York Law 2016 Phase One Credit Support Annex for Initial Margin (IM) with respect to Japanese Securities will be incorporated herein as Paragraph 13(t)(iii) if specified as applicable here: the Japanese Securities Provisions are: Not Applicable.

(v) ***Amendments.***

None specified

(w) ***Additional Terms.***

None specified

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